

## 23LBCV01659 23LBCV01659

County: los-angeles

Division: Civil Law and Motion

Department: S27

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### 1. Background

#### Facts

Plaintiffs, Michael Caballero and

Eunice Angelica Ibarra filed this action against Defendants, Jenny Dang, Tam Pham, and US Land Realty, Inc. for failure to disclose during the course of a real estate transaction. Plaintiffs were the buyers of the property; Pham and US Land Realty were the sellers of the property; Dang was the dual agent for the purchase of the property.

Plaintiffs filed their complaint on

9/01/23. On 3/11/24, Defendants filed a cross-complaint against Plaintiffs for breach of contract and negligence. The crux of the cross-complaint is that the parties, during escrow, learned of problems Defendants had not known when they filed their disclosures, and Defendants thereafter paid cash to have the problems remedied, but Plaintiffs refused to complete the sale despite the good faith efforts to remedy the problems.

### 2. Stipulated

#### Judgment

On 10/22/25, the Court signed the parties' amended stipulated judgment, pursuant to which Defendants were to pay monies to Plaintiffs, sell the subject property to Plaintiffs, cancel a specified escrow account, release funds from the account to Plaintiffs, open a new escrow account, transfer Defendants' rights to tenant leases in the property, transfer security deposits and related deposits to Plaintiffs, and convey title to the property free and clear of liens, claims, and encumbrances.

The stipulated judgment then contains a provision clarifying that, if there is a legal or equitable action, arbitration, or other proceeding brought because of a dispute, breach, default, etc., in connection with the stipulated judgment, the prevailing party can recover attorneys' fees.

The stipulated judgment then contains a provision clarifying that the Court retains jurisdiction to enforce the judgment pursuant to CCP §664.6.

### 3. Prior

#### Hearings on Motion to Enforce Stipulated Judgment

On 1/07/26, Plaintiffs filed a motion to enforce stipulated judgment.

On 2/10/26, Plaintiffs filed an amended motion to enforce the stipulated judgment. Specifically, they sought the following order:

(1) Defendants are to pay \$23,785.65 for damages from Defendants breach of the Stipulated Judgment no later than three (3) days from the entry of this Order.

(2) Defendants are ordered to pay monetary sanctions in the amount of \$24,932.04 for reasonable attorneys fees and costs caused by Defendants breach of the Stipulated Judgment to Plaintiffs no later than three (3) days from the entry of this Order.

(3) Defendants are ordered to produce all contact information for any persons or entities with a lien against real property located at 1520-1522 Bixby Dr., Long Beach, California no later than three (3) days from the entry of this Order.

(4) Defendants are ordered to produce all documents relating to any existing liens against the real property located at 1520-1522 Bixby Dr., Long Beach, California ("Property") no later than three (3) days from the entry of this Order.

(5) All liens on the Property that

were recorded after Plaintiffs' lis pendens was recorded, on April 4, 2024, are not bone fide liens and Plaintiffs' lis pendens is superior to those liens. All liens on the Property recorded after April 4, 2024 are hereby discharged.

(6) The Clerk of the Superior Court shall sign all documents required to transfer title of the Property to the Plaintiffs.

Defendants opposed the motion, and the Court issued a tentative ruling prior to the hearing as follows:

CCP §664.6(a) permits the Court to “enter judgment pursuant to the terms of the settlement.” In this case, the parties did not enter into a stipulation for entry of judgment upon default, nor did they enter into a settlement agreement. They entered into a stipulated judgment. There is, therefore, already a judgment. The Court cannot enforce the parties' judgment by entering another judgment. Plaintiff cites no authority permitting the Court to do so, and the Court knows of none.

Additionally, there is no provision in the parties' stipulated judgment permitting an award of monetary or other damages not contemplated by the settlement itself. Plaintiff cites no authority permitting the Court to add monetary damages to the stipulated judgment, and again, the Court knows of none. Indeed, Defendants cite authority expressly precluding the Court from ordering such other and further relief in their opposition papers, and Plaintiffs appear to drop the argument in reply.

Plaintiffs correctly note that ¶9 of the stipulated judgment permits them to recover attorneys' fees in an action or other proceeding to enforce the judgment. They must, however, prevail on their request in order to recover those fees. Because Plaintiffs did not provide any authority for the relief they seek, the request is denied.

Plaintiffs seek sanctions pursuant to CCP §128.5(f). Plaintiffs failed to comply with §128.5(f)(1)(A) and (B), which require a motion for sanctions to be made separately from any other request for relief and require a “safe harbor” period before the motion is filed.

Absent compliance with the section, the Court will not award sanctions.

At the conclusion of the 3/26/26 hearing on the motion, the Court, at Plaintiffs' request, continued the hearing on the motion to 4/28/26. Plaintiffs ultimately took the hearing off calendar, and the Court never issued a final ruling on the motion.

#### 4. Current Motion to Enforce Stipulated Judgment

On 6/05/26, Plaintiffs filed the instant motion to enforce stipulated judgment, setting it for hearing on 9/17/26. On 6/24/26, Plaintiffs appeared ex parte seeking an order shortening time for hearing on the motion. The Court granted the application and scheduled the motion for hearing on 7/07/26. The Court did not clarify whether or when opposition to the motion must be filed in its order granting the application.

Despite the lack of opposition to the motion, the motion suffers from the same basic problem detailed above re: the prior motion. The motion seeks the following order:

(1) Defendants are ordered to pay monetary sanctions in the amount of \$4,454.70 for reasonable attorney's fees and costs for the filing of this present Motion to Plaintiffs no later than three (3) days from the entry of this Order.

(2) All encumbrances on the Property that were recorded after Plaintiffs' lis pendens was recorded, on April 4, 2024, are not bona fide encumbrances and Plaintiffs' lis pendens is superior to those encumbrances. All liens on the Property recorded after April 4, 2024, are hereby discharged.

(3) The Deed of Trust recorded on October 11, 2023 with recording number 20230710660, is hereby discharged due to the reconveyance, with recording number 20250770112, recorded on November 5, 2025.

(4) The Clerk of the Superior Court shall sign all documents required to transfer title of the Property to the Plaintiffs.

(5) A bond of \$50,000 is to be paid by Plaintiffs to secure the Deed of Trust with recording number 20230731840 within ninety (90) days of receiving title. As such, the Deed of Trust with recording number 20230731840 is hereby discharged.

(6) Defendant Jenny Dang remains responsible for repayment of the Deed of Trust with recording number 20230731840.

As discussed above, however, there is already a judgment in place in this action.

Thus, to the extent the motion is made pursuant to CCP §664.6, the cited statute does not permit the Court to enter the order sought by Plaintiffs. §664.6 permits the Court to reduce a settlement to a judgment. It does not permit the Court to take a judgment that already exists and issue an order “enforcing” the judgment.

To the extent Plaintiffs rely on CCP §§128 and 187, Plaintiffs fail to provide authority that stands for the position that the Court can issue the order sought under the circumstances. Plaintiffs cite *Sears v. Rule*, 27 Cal.2d (1945) 131, 149 and *Redke v. Silvertrust* (1971) 6 Cal.3d 94, 108 to support their position that the Court can and should sign title of the property over to Plaintiffs. The cited cases, however, concern what findings a trial court can make at the conclusion of a trial and what terms can be placed in the judgment; nothing in the cited cases indicates the Court can sign title of a property over from one party to another in order to enforce a judgment.

Finally, Plaintiffs seek imposition of attorneys' fees as sanctions, but their request suffers from the same defects detailed above in connection with the same request in the prior motion. To the extent the motion is premised on the attorneys' fees provision in the parties' agreement, Plaintiffs have not prevailed on any motion re: enforcement of the judgment, and therefore fees are not appropriate. The Court has

revisited the §128.5 issue and finds the safe harbor period does not apply, as the alleged action or tactic is not the making or opposing of a written motion or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading. The Court is not, however, familiar with the use of §128.5 in connection with post-judgment enforcement proceedings. Additionally, §128.5(f)(1)(A) makes clear that a motion for sanctions under §128.5 must be made “separately from other motions or requests.” Plaintiff tacked the request for relief onto the motion, which primarily seeks relief under §664.6, and this is not permissible. The request for sanctions is therefore also denied.

The Court notes that Plaintiffs filed a motion for an OSC re: contempt on 6/01/26, setting it for hearing on 6/30/26. For reasons that are not clear, Plaintiffs took the motion for an OSC re: contempt off calendar prior to the hearing, and the Court did not consider the request.

The Court is not, in connection with today's motion, holding that Plaintiffs have no available relief. The Court is holding only that Plaintiffs' cited statutes and authorities do not support the relief sought, and the motion must be denied. The Court urges the parties to work together to resolve outstanding issues, and makes clear that this ruling is without prejudice to Plaintiffs' right to renew this or any similar request for relief if Plaintiffs can provide on-point and relevant authority supporting the relief sought.

Plaintiffs are ordered to give notice.